

24STLC08663 24STLC08663

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-13

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Case Number: 24STLC08663 Hearing Date: July 13, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Western Funding, Inc.'s

(1) Motion for Terminating Sanctions,

Striking Defendant's Answer and Entering Default, Request for Monetary

Sanctions; and (2) Motion for Terminating Sanctions, Striking Defendant's

Answer and Entering Default, Request for Monetary Sanctions, are granted. Defendants

Alejandro Ramirez and Si Se Puede Autos, Inc.'s Answer filed on May 13,

2025 is stricken.

Order to Show Cause Regarding Entry of Default and Default Judgment is

set for 08/10/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Trial set for August 3, 2026 is taken off calendar.

Analysis:

On November

22, 2024, Plaintiff Western Funding, Inc. ("Plaintiff") filed this action against

Defendants Alejandro Ramirez ("Defendant Ramirez") and Si Se Puede Autos, Inc. ("Defendant

Si Se Puede Autos"). Defendants filed an Answer

on May 13, 2025.

On March 2 and 3, 2026, the Court granted Plaintiff's (1)

Motion to Compel Responses to Requests for Production of Documents and Request

for Sanctions; and (2) Motion to Compel Responses to Special Interrogatories

and Request for Sanctions, against Defendants

with respect to service of responses. (Minute Orders, 03/02/26 and 03/03/26.)

The Court ordered Defendants to serve verified discovery responses within 20 days' service of the order. (Ibid.) Notice of the ruling was mailed to Defendants on March 3 and 4, 2026. (Notices of Ruling, filed 03/03/26 and 03/04/26.)

On March 30, 2026, Plaintiff filed the instant Motions for Terminating Sanctions, Striking Defendant's Answer and Entering Default, Request for Monetary Sanctions, as to each Defendant. Plaintiff served the Motions on Defendants through Attorney Rami Bata, Esq. by electronic mail on the same day. No opposition has been filed to date.

Discussion

Plaintiff seeks an order striking Defendants' Answer under Code of Civil Procedure section 2023.030, pursuant to which the Court may impose a terminating sanction by one of the following orders:

(1)

An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2)

An order staying further proceedings by that party until an order for discovery is obeyed.

(3)

An order dismissing the action, or any part of the action, of that party.

(4)

An order rendering a judgment by default against that party.

(Code Civ. Proc., § 2023.030, subd. (d).) Where a party willfully disobeys a discovery order, courts have the discretion to impose terminating, issue, evidence or monetary sanctions. (Code Civ. Proc., §§ 2023.010, subds. (d), (g); *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495.) The court should look at the totality of the circumstances in determining whether terminating sanctions are appropriate. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.) Ultimate discovery sanctions

are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) “[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith.” (Brown v. Sup. Ct. (1986) 180 Cal.App.3d 701, 707.)

As set forth above, on March 2 and 3, 2026, the Court granted Plaintiff's discovery motions against both Defendants requiring them to serve responses within 20 days' service of the orders. (Motions, Aphosian Decl., ¶6 and Exh. 2.) Notice of each ruling was served on Defendants on March 3 and 4, 2026. (Ibid.) As of the filing of the instant Motions, however, Defendants have not served responses to the discovery requests. (Id. at ¶5.)

The Court finds terminating sanctions are warranted for Defendants' non-compliance with the discovery orders. Despite notice of the discovery Motions, the Court's orders, and the instant Motions for Terminating Sanctions, Defendants have not served responses as ordered nor did Defendants file any opposition to the instant Motions to explain their wholesale failure to participate in discovery and comply with the Court's orders. Defendants' persistent refusal to engage in the discovery process without explanation or justification demonstrates that their compliance with the Court's orders cannot be achieved through lesser sanctions. Although terminating sanctions are a harsh penalty, “[t]he court [is] not required to allow a pattern of abuse to continue ad infinitum.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 280.) Accordingly, the Court strikes Defendants' Answer. However, it does not enter their default, which is not an authorized action under the moving statute.

Plaintiff also moves for monetary sanctions under subdivision (a) of the moving statute, on account of Defendants' misuse of the discovery process. (Code Civ. Proc., § 2023.030, subd. (a).) Failing to respond to an authorized method of discovery, especially in light of the Court's orders, is a misuse under Code of Civil Procedure section 2023.010. (Code Civ. Proc., § 2023.010, subd. (d).) Plaintiff moves for an award of \$ 1,575.77 per motion, which the Court finds excessive given that they are nearly identical and unopposed. (See Motion, Aphosian Decl., ¶8.) The Court awards Plaintiff \$1,151.54 based on two hours of attorney time billed at \$500.00 per hour, and the filing fees of \$75.77 per Motion. (Ibid.)

Conclusion

Plaintiff Western Funding, Inc.'s

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Sanctions; and (2) Motion for Terminating Sanctions, Striking Defendant's

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Moving party to give notice.